

Stephen Cooke <stephencooke.c@gmail.com>

Request to File an Application to Limit Costs

1 message

Stephen Cooke <stephencooke.c@gmail.com>

Tue, Sep 10, 2024 at 5:20 PM

To: Matthew Shepherd <mshepherd@ramsdenslaw.com.au>

Dear Matthew,

I hope this email finds you well. I am writing to express my concern regarding the ongoing legal costs in my matter and the apparent inefficiencies that have been causing these expenses to increase unnecessarily. Given my current financial situation and the need to preserve my resources, I believe it is crucial to take steps to limit further costs.

To that end, I kindly request that you file an Application to Limit Costs with the court. The aim is to minimize unnecessary expenditures and focus our efforts on the essential actions required to move the matter forward towards a final resolution.

I would appreciate it if you could advise on the process and any additional information or documentation required from my end to support this application. I am keen to ensure that our approach remains cost-effective and that we avoid any further unnecessary legal expenses.

Please confirm receipt of this email and provide an update on the next steps at your earliest convenience.

Thank you for your attention to this matter.

Kind regards,
Stephen Cooke

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

On Tue, Sep 10, 2024 at 5:21 PM Stephen Cooke <stephencooke.c@gmail.com> wrote:

Dear Matthew,

Before any further steps are taken, I would appreciate it if you could kindly send me a copy of the email you plan to send to Delaney Roberts, which should confirm/state the following:

- a) When my client agreed to the property settlement in principle, it was not disclosed or made known that the offer was subject to the acceptance of your client's narrative with respect to the marital relationship and parenting over the last 10 years.
- b) Before we commit to wasting any more time or money on what has been a fruitless exercise thus far, per your assertion that "both parties do not need to fully agree on

the content of the joint letter," do you confirm that, should my client contest all assertions in the letter proposed by your client, we have your approval to send it to the registrar regardless?

c) As we have passed yet another deadline imposed by your client (which is absurd given that the previous deadline was provided in the absence of full disclosure regarding the joint letter to the registrar, which aims to rewrite history and solidify matters that should remain wholly separate from the property matter), we request assurance of a reasonable deadline of a week while we work out the details, before attempting to advance this matter further.

Like the Court, I am very aware of the exceeding costs of this matter and quite a bit to say about the reasons for it. My client has made it known that he plans to self-represent at Court should the need arise.

Please ensure this is clearly communicated to Delaney Roberts in the email.

Kind regards,

Stephen Cooke

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

On Tue, Sep 10, 2024 at 10:40 AM Matthew Shepherd <mshepherd@ramsdenlaw.com.au> wrote:

Dear Stephen

See email below from the court re the Family Dispute Resolution Conference. It asks for the Case Outlines and minute of Order.

These were discussed in my email of yesterday which explained what need to be done. This depends on whether the property matter is resolved or not.

Have you had a chance to look at my email of yesterday yet?

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229**E:** mshpherd@ramsdenlaw.com.auA SMARTER
PERSPECTIVE**T:** 1300 749 709 | **W:** ramsdenfamilylaw.com.au**A:** Level 3, 1 Castlereagh Street, Sydney NSW 2000

Email Disclaimer & Anti-Fraud Information

Liability limited by a scheme approved under Professional Standards Legislation

**BOOK A
MEDIATION WITH ME****From:** Reece Ramsden <r Ramsden@ramsdenlaw.com.au>**Sent:** Tuesday, September 10, 2024 10:30 AM**To:** All Sydney <AllSydney@ramsdenlaw.com.au>**Subject:** FW: Cooke S C & H A NCC3896/2023 | Part 1 and Part 2 Dispute Resolution Conference [SEC=OFFICIAL]

Regards,

REECE RAMSDEN

Partner (Director)

*Accredited Specialist in Family Law***D:** (02) 8123 1223**E:** ramsdens@ramsdenslaw.com.auA SMARTER
PERSPECTIVE**T:** 1300 749 709 | **W:** ramsdensfamilylaw.com.au**A:** Level 3, 1 Castlereagh Street, Sydney NSW 2000

Email Disclaimer & Anti-Fraud Information

Liability limited by a scheme approved under Professional Standards Legislation

From: Associate Senior Judicial Registrar Kelly <Associate.sjrKelly@fcfcoa.gov.au>**Sent:** Tuesday, September 10, 2024 10:24 AM**To:** Reece Ramsden <rramsden@ramsdenslaw.com.au>; hello@delaneyroberts.com.au; admin@jlmfamilylawyers.com.au**Cc:** NCC38962023@federalcourts.gov.au**Subject:** Cooke S C & H A NCC3896/2023 | Part 1 and Part 2 Dispute Resolution Conference [SEC=OFFICIAL]You don't often get email from associate.sjrKelly@fcfcoa.gov.au. [Learn why this is important](#)**OFFICIAL**

Good morning,

I refer to the above matter which is listed for a Family Dispute Resolution Conference.

The **Part 1** event will be conducted on **13 September 2024** by telephone. Judicial Registrar Kelly will initiate the call to:

- **The Applicant at 10:00am AEST**
- **The Respondent at 10:45pm AEST**

If the parties have not yet submitted their Case Outlines and any minute of Order sought, could the parties please provide this to Chambers at their earliest convenience.

The **Part 2** event will be conducted via Microsoft Teams and is listed for **18 September 2024** commencing at **9:00 am AEST**. Please join the link below on 18 September 2024. .

Microsoft Teams [Need help?](#)

Join the meeting now

Meeting ID: 465 699 783 066

Passcode: HRytxm

Dial in by phone

+61 2 9161 1229,,439485770# Australia, Sydney

[Find a local number](#)

Phone conference ID: 439 485 770#

Join on a video conferencing device

Tenant key: federalcourts@m.webex.com

Video ID: 137 491 556 3

[More info](#)

For organizers: [Meeting options](#) | [Reset dial-in PIN](#)

Thank you.

Kind Regards,

Carolyn

Associate / Legal Case Manager – Chambers of Senior Judicial Registrar Kelly

Federal Circuit and Family Court of Australia

p. 1300 352 000 | **e.** Associate.sjrKelly@fcfcoa.gov.au | **w.** www.fcfcoa.gov.au